

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

0044041567

PAGE 1 OF 17

2. CONTRACT NUMBER

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER
140A1226Q0007

6. SOLICITATION ISSUE DATE

05/06/2026

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

Brian Roberts

b. TELEPHONE NUMBER (No collect calls)

360-614-5851

8. OFFER DUE DATE/ LOCAL TIME

05/20/2026 1200 PD

9. ISSUED BY

CODE

A12

BIA NWRO 00012
911 NE 11TH AVENUE
Contracting Office
Portland OR 97232

10. THIS ACQUISITION IS

☐ SMALL BUSINESS

☐ HUBZONE SMALL BUSINESS

☐ SERVICE-DISABLED

☐ VETERAN-OWNED

☐ SMALL BUSINESS (SDVOSB)

☐ UNRESTRICTED OR

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

☐ ECONOMICALLY

☐ DISADVANTAGED

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

☐ 8(A)

☒ SET ASIDE: **100.00%** FOR:

NORTH AMERICAN
INDUSTRY CLASSIFICATION
STANDARD (NAICS):

333120

SIZE STANDARD:

1,250

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☒ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A
☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST
☒ FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)

15. DELIVER TO

CODE

0011284422

See Schedule

16. ADMINISTERED BY

CODE

A12

See Schedule

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY CODE

18a. PAYMENT WILL BE MADE BY

CODE

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	ADMINISTERED BY: BIA NWRO 00012 911 NE 11TH AVENUE Contracting Office Portland OR 97232 US DELIVER TO: Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Government Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☐ ARE ☒ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED: _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

Brian Roberts

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
00001	BIA (P09) WARM SPRINGS AGY 1233 Veterans Street WARM SPRINGS OR 97761-1239 US This procurement is 100% set aside for Indian Small Business Economic Enterprise (ISBEE) in accordance with DIAR 1452.280-1. Fill-in DIAR 1452.280-4 Indian Economic Enterprise Representation to confirm ISBEE or IEE status. Fill in Attachment 2 IA - IEE Representation Form and provide it with your quote. Delivery: 07/15/2026 T770 T4 Bobcat Compact Track Loader 44	1	EA		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

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SECTION 1 INTRODUCTION

1.1 GENERAL

This is a combined synopsis/solicitation for commercial {products or services} items prepared in accordance with the format in Federal Acquisition Regulation (FAR) Subpart 12.6 - Streamlined Procedures for Evaluation and Solicitation for Commercial Products and Commercial Services, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued.

This solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular (FAC) 2026-01, March 13, 2026, Civilian Agency Acquisition Council (CAAC) Letter 2025-02 issued February 18, 2025, Department of the Interior Acquisition, Arts, and Asset Policy (DOI-AAAP) 0210 v01.

1.2 AWARD TYPE

The Government contemplates awarding a Firm-Fixed-Price (FFP) Purchase Order.

1.3 SET ASIDE

This requirement is set-aside 100% for Indian Small Business Economic Enterprises (ISBEEs).

1.4 NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE

The NAICS code for this requirement is 325320, Pesticide and Other Agricultural Chemical Manufacturing with a Small Business size standard of 1,150 Employees.

1.5 ANTICIPATED PERIOD OF PERFORMANCE/DELIVERY DATE

Delivery Date: **07/15/2026 or Reply With Your Leadtime**

1.6 PERFORMANCE LOCATION OR DELIVERY ADDRESS

BIA, Warm Springs Agency
1233 Veterans Street
Warm Springs, OR 97761-1239

1.7 POINT OF CONTACT

POC: TBA {to be provided at award}
Phone: TBA
Email: TBA

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SECTION 2 DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

2.1 GENERAL REQUIREMENTS

See Attachment 1, Specifications and SF 1449. All items are brand name or equal as detailed below:

Item#	Description	Qty	Minimum Salient Characteristics
00001	T770 T4 Bobcat Compact Track Loader 44	1	Similar to: T770 T4 Bobcat Compact Track Loader 44 At least 90+ horsepower Track Width 17" Selectable Joystick Controls 2 Speed Travel Mode Backup Alarm and Horn Enclosed Cab with AC and Heater Front and Rear Work Lights Attachment Control Kit Hi-Flo Hydraulics Keyless Start Air Ride Cloth Seat Rear View Camera

2.2 LINE ITEMS

See Schedule

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SECTION 3 GENERAL TERMS AND CONDITIONS

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

3.1 FAR AND DIAR CLAUSES

The following Federal Acquisition Regulations (FAR) and Department of the Interior Acquisition Regulation (DIAR) Clauses are applicable to this requirement:

FAR 52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

- FAR Clauses: <https://www.acquisition.gov/browse/index/far>
- DIAR Clauses: <https://www.acquisition.gov/diar>

Clause	Title	Date
52.000-1	Definitions (RFO Consolidated)	Jun 2020
52.203-6	Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I	Nov 2021
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	Jun 2020
52.203-17	Contractor Employee Whistleblower Rights	Nov 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020)) (RFO DEVIATION)	Mar 2026
52.204-13	System for Award Management – Maintenance (RFO DEVIATION)	Mar 2026
52.204-18	Commercial and Government Entity Code Maintenance	Aug 2020
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2015
52.211-6	Brand Name or Equal	Aug 1999
52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services (RFO DEVIATION)	Mar 2026
52.219-28	Postaward Small Business Program Rerepresentation (Jan 2025) (RFO DEVIATION)	Jan 2026
52.222-3	Convict Labor	Jun 2003
52.222-19	Child Labor—Cooperation with Authorities and Remedies	Jan 2025

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52.222-36	Equal Opportunity for Workers with Disabilities	Jun 2020
52.222-50	Combating Trafficking in Persons	Oct 2025
52.225-13	Restrictions on Certain Foreign Purchases	Feb 2021
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	Oct 2018
52.232-39	Unenforceability of Unauthorized Obligations	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar 2023
52.233-1	Disputes	May 2014
52.233-3	Protest After Award	Aug 1996
52.233-4	Applicable Law for Breach of Contract Claim	Oct 2004
52.237-2	Protection of Government Buildings, Equipment, and Vegetation	Apr 1984
52.247-34	F.o.b. Destination	Jan 1991

1452.280-2	Notice of Indian Economic Enterprise set-aside	Feb 2021
1452.280-3	Indian Economic Enterprise subcontracting limitations	Feb 2021

FAR 52.252-6 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

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3.2 CUSTOM CLAUSES

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Invoice Contents:

- Invoices will be paid upon approval and acceptance by the Government COR. Invoices must include, as a minimum, the following information:
 1. Order Number
 2. Item number of deliverable
 3. Description of deliverable
 4. Price of deliverable
 5. Quantity of deliverable
 6. Date deliverable was provided to the Government for inspection
 7. Serial number/part number if applicable
- The contractor is responsible for ensuring invoices submitted are accurate and complete
- Additional supporting documentation MAY BE REQUESTED at the discretion of the COR
- **Final Invoice**

Within sixty calendar days of product acceptance and/or completion of services:

 - a. The contractor shall submit a final invoice, designated as such by a clear statement of "FINAL INVOICE" on the face of the invoice document.
 - b. The contractor shall provide a certificate of completion which certifies all goods and service have been provided as required by this award.
 - c. The contractor shall provide a release of claims against the government for any further payment under this award.
- The sixty-calendar day submission timeframe shall not be extended without written authorization from the contracting officer. In the event items a, b, or c above are not

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submitted within the authorized timeframe, the contracting officer will make final cost determinations in order to make final payment and close out the contract unilaterally.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of custom clause)

Notice Regarding Late Delivery/Delayed Performance

The contractor will immediately notify the Contracting Officer in writing in the event the contractor encounters difficulty in performance by giving pertinent details, including the date by which it expects to complete performance or make delivery. However, the notification will be informal only in character and will not be construed as a waiver by the Government of any contractual delivery schedule or date, or any rights or remedies provided by law or under this effort.

(End of custom clause)

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3.3 FAR AND DIAR PROVISIONS

FAR 52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

- FAR Clauses: <https://www.acquisition.gov/browse/index/far>
- DIAR Clauses: <https://www.acquisition.gov/diar>

Provision	Title	Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	Jan 2017
52.204-7	System for Award Management – Registration (RFO DEVIATION)	Mar 2026
52.204-16	Commercial and Government Entity Code Reporting	Aug 2020
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services (RFO DEVIATION)	Mar 2026
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (RFO DEVIATION)	Mar 2026

1452.280-1	Notice of Indian Small Business Economic Enterprise Set-Aside	Feb 2021
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FAR 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation (Nov 2015)

(a) Definitions. "Inverted domestic corporation" and "subsidiary" have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

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FAR 52.209-5 -- Certification Regarding Responsibility Matters (Aug 2020)

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks “have”, the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if

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the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has ☐ has not ☐, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) “Principal,” for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions). This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror’s responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

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FAR 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

FAR 52.212-2 Evaluation—Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The Government contemplates a firm-fixed price contract on a price only basis, resulting from this solicitation. Quotes will be evaluated based on Lowest Priced - Technically Acceptable (LPTA). Technical acceptability will be based on the ability of the vendor to meet all elements of the Specifications as determined by the Warm Springs Agency. Failure to do so will render the offeror's quote as Technically Unacceptable and it will not be considered for award. Award will be made with consideration of the prices proposed for the requirements being ordered, and to determine that the total price is reasonable in accordance with the requirements listed in the Specifications.

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(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

DIAR PROVISIONS INCORPORATED BY FULL TEXT

DIAR 1452.233-2 Service of Protest Department of the Interior (Jul 1996) (RFO Deviation)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Competition Advocate (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Bryan Harden, Competition Advocate
bryan.harden@bia.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Competition Advocate shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW, Room 6511, Washington, DC 20240.”

(End of provision)

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DIAR 1452.280-4 Indian Economic Enterprise Representation (FEB 2021)

(a) The offeror represents as part of its offer that it [] does [] does not meet the definition of Indian Economic Enterprise (IEE) as defined in DIAR 1480.201 and that it intends to meet the definition of an IEE throughout the performance of the contract. The offeror must notify the contracting officer immediately in writing if there is any owner change affecting compliance with this representation.

(b) Any false or misleading information submitted by an enterprise when submitting an offer in consideration for an award set aside under the Buy Indian Act is a violation of the law punishable under 18 U.S.C. 1001. False claims submitted as part of contract performance are subject to the penalties enumerated in 31 U.S.C. 3729 to 3731 and 18 U.S.C. 287.

(End of provision)

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SECTION 4 INSTRUCTIONS TO QUOTERS

4.1 QUOTATION DUE DATE AND TIME

MUST be received on or before the date and time specified on the SF-1449.

The addressed designated for receipt of quotes is:

Attn: **Brian Roberts, Contracting Officer**, brian.roberts@bia.gov

The subject line of the email must be as follows and include the RFQ number:

“Company Name Quote in Response to 140A1226Q0007”

If within 24 hours after quote submission a quoter does not receive confirmation that their quote was received, it is the quoter’s responsibility to confirm that their quote is received by the designated recipient listed above. Confirmation should come directly from the designated recipient.

4.2 QUOTATION CONTENTS

In order to participate under this acquisition all interested parties must submit a quote in accordance with the terms and conditions stated herein.

The submission must include the following information:

Company Information:

- Unique Entity ID
- Complete Business Mailing Address
- Contact Name, Phone Number & Email Address
- RFQ Number
- Quote Number
- Quote Date
- Pricing

When submitting a quote in response to this solicitation, the quoter shall include a signed and completed copy of the attached IEE Representation Form and the above DIAR 1452.280-4. Failure to submit a complete and signed form and DIAR 1452.280-4 may result in the quoter being disqualified from the competition and ineligible for contract award.

Price Quote: Pricing shall be in Firm Fixed-Price (FFP) format for the quoter’s quoted solution to meet the needs of the requirement. Quoted price must address all elements of the SOW/Specifications.

4.3 CONTRACTOR INQUIRIES

Any questions related to this requirement must be submitted to the email listed in Section 4.1 above no later than **12:00 PM Pacific Time, 13 May 2026.**

Solicitation Number	Document Title	Page
140A1226Q0007	Compact Track Loader for Warm Springs Agency	17 of 17

SECTION 5 ATTACHMENTS

- 1. Specifications
- 2. IEE Representation Form

END